

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV,

– vs. –

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

INFORMAL DOCKET NO.: 1953(I)

KAIRAT NURGAZINOV,

– vs. –

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

**COMPLAINANTS’ RESPONSE TO RESPONDENTS’ MOTION FOR FURTHER
EXTENSION OF TIME TO RESPOND TO MOTION TO WITHDRAW AND TO
REPLY BY ERIC. C. JEFFREY**

Pursuant to Rules 69, 71, and 102, of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (46 C.F.R. 502 *et seq.*), Complainants, through their Counsel, Marcus A. Nussbaum, Esq. respectfully submit this response to respondents’ motion for further extension of time regarding the motion by Eric. C. Jeffrey to withdraw as counsel for respondents, as well as to the “Reply” by respondents’ counsel, Eric. C. Jeffrey, to same.

ARGUMENT

For purposes of brevity and to avoid repeating arguments previously made on this issue, the Commission is respectfully referred to the arguments already set forth within Complainants' previous responses filed with the Commission on this issue.

Complainants particularly wish that the Commission take note that Jeffrey has now taken his endless filings to the level of the theater of the absurd. Specifically, in one filing Jeffrey purports to be acting as counsel for respondents by requesting a further extension of time for respondents to oppose Jeffrey's application to withdraw as counsel; and in subsequent filing docketed just four days later purports to oppose the very application made by Jeffrey on behalf of his clients. In so doing, Jeffrey not only creates untenable conflicts of interest of galactic proportions, but continues to "game" the Presiding Officer and the Commission with false-faced and duplicitous litigation practices calculated solely to gin up the very attorneys fees which are the professed basis for Jeffrey's application to withdraw, to wit: that his deadbeat client, Hitrinov is "stiffing" him.

Aside from suborning endless perpetuity of the instant litigation, it remains unclear as to whose or what interests are being furthered, and to what end such extensions as those applied for by Jeffrey over the past six (6) months serve. - - Certainly not expeditious conclusion of the instant litigation, or any semblance or relationship to the interests of justice.

To the extent that Jeffrey opposes his own clients' application for a further extension, which he himself filed papers in support of, complainants find themselves in the extraordinary position of agreeing with at least one of Jeffrey's duplicitous positions, to wit: that Hitrinov's latest application for an extension of time, albeit incongruously filed by Jeffrey, should be denied.

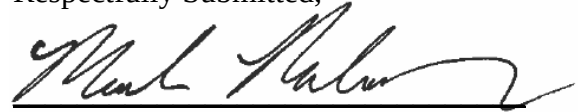
Complainants additionally note that in response to complainants' request to Jeffrey for consent to complainants' application for an extension of time to May 3, 2017 for the filing of

exceptions (which was granted by the Commission), Jeffrey stated that he "...will be out of town (mostly out of the country), for most of the middle of May...". The latter represents a continued practice of Jeffrey's endless personal travel and deference to other matters which has dragged out litigation of complainants' instant claims for the past three (3) years, wherein Jeffrey displays his utter disdain for the Commission, the Presiding Officer, and the expeditious litigation of complainants' instant claims.

WHEREFORE, it is respectfully requested that Jeffrey's application on behalf of Hitrinov for an extension of time to oppose Jeffrey's own motion to be relieved, be denied in its entirety, along with such other and further relief as the Commission may deem just and proper under the circumstances.

Dated: April 17, 2017
Brooklyn, NY

Respectfully Submitted,

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", written over a horizontal line.

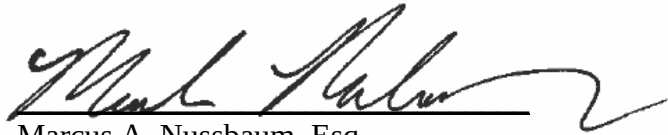
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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' RESPONSE TO RESPONDENTS' MOTION FOR FURTHER EXTENSION OF TIME TO RESPOND TO MOTION TO WITHDRAW AND TO REPLY BY ERIC. C. JEFFREY** upon Respondents' Counsel at the following address:

Nixon Peabody LLP
Attn: Eric C. Jeffrey, Esq.
799 9th Street NW, Suite 500
Washington, DC 20001-4501

by first class mail, postage prepaid, and via email (ejeffrey@nixonpeabody.com).

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", is written over a horizontal line.

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Dated: Brooklyn, New York
April 17, 2017